

Communicating the Outcome and Next Steps



1. Using this Procedure

This procedure should be used following a determination of a person's/carer's eligible needs under the Care Act.

It should be used by all services, apart from the reablement service (because it is not applicable) and the Occupational Therapy service.

If you work in the Occupational Therapy service see: [Communicating the Outcome and Next Steps \(Occupational Therapy\)](#)

2. In all Cases

Having made a determination about eligibility, the Care Act requires that in all cases you must give the person (or their representative if they lack capacity)/carer a written record, explaining:

- a. The overall eligibility determination (whether or not the person's/carer's overall needs meet the eligibility criteria as set out under the Care Act);
and
- b. The rationale for the decision.

It is important that the person/carer understands the eligibility outcome and the reasons for it. To this end it should be provided in a format that is accessible to them.

If the outcome has been provided in a format that you know or suspect the person/carer will not be able to understand you should:

- a. Consider any steps that you can take to support them to understand it (for example talking through the outcome over the telephone or summarising it in a simpler format); and
- b. Consider the duty to make an independent advocate available.

If an advocate is already involved they should be informed when the outcome has been provided to the person/carer so that they can support them to understand it.

3. When the Overall Determination is 'Ineligible'

Where the overall eligibility determination is 'ineligible' there is no duty on the Local Authority to meet any needs that the person/carer has.

When providing the written record of the ineligible determination you must:

- a. Explain the eligibility determination;
- b. Explain the rationale for the determination;
- c. Provide written information and advice about what can be done now to reduce the ineligible needs that the person/carer has; and
- d. Provide written information and advice about what can be done to prevent or delay the development of eligible needs.

See: [Providing Information and Advice](#), which includes links to local and national resources.

See: [Accessing a Prevention Service](#).

You should also consider:

- a. Any need for action under adult safeguarding procedures (for example, if a person with Care and Support needs is self neglecting or unable to protect themselves from abuse or neglect from others); and
- b. Any need for action under children's safeguarding procedures (if a child is living in destitution they are a 'child in need' under the Children Act 1989).

See [Safeguarding Adults](#), which also includes information about how to raise a children's safeguarding concern.

If you are concerned that an adult or child is in imminent danger from abuse or neglect, or that a criminal act has taken place you should contact the police by dialling 999.

3.1 Meeting Ineligible Needs

Under the Care Act the Local Authority has a power to meet needs that have not been deemed eligible, normally under the remit of preventing a crisis or longer term needs through a short term intervention. However, this power should not be used routinely or without authority and you should familiarise yourself with the local policy for meeting ineligible needs.

Where a decision is made to meet an ineligible need the arrangements to do should be in line with the meeting of eligible needs.

4. When the Overall Determination is 'Eligible'

When providing the written record of the determination you must:

- a. Explain the eligibility determination;
- b. Explain the rationale for the determination;
- c. Where there are both eligible and ineligible needs, provide written information and advice about what can be done now to reduce any ineligible needs that the person/carer has; and
- d. Where there are both eligible and ineligible needs, provide written information and advice about what can be done to prevent or delay the development of eligible needs.

Need to know

A person/carer can still have some ineligible needs if they have an overall 'eligible' determination. The duty to meet needs only applies to those needs that have been deemed eligible.

Under the Care Act the Local Authority has a power to meet needs that have not been deemed eligible, normally under the remit of preventing a crisis or longer term needs through a short term intervention. However, this power should not be used routinely or without authority and you

should familiarise yourself with the local policy for meeting ineligible needs.

Where a decision is made to meet an ineligible need the arrangements to do should be in line with the meeting of eligible needs.

5. Managing Disagreement about Eligibility

Under the Care Act the Local Authority is responsible for applying the criteria and making the final decision about eligibility. As such this is your responsibility as you are the Local Authority's representative.

There may be times when the person/carer, their representative or another person disagrees with the eligibility determination you have made.

In this situation, you should be open to reviewing the available evidence and your rationale to ensure that the determination is robust. You should be open and transparent about the evidence sources you have used and take steps to try and support the person/carer to understand the determination you have made.

Where ongoing disagreement persists you should:

- a. Seek the support and advice of your line manager as required;
- b. Make a record of any difference of opinion in the formal record of assessment;
- c. Ensure the evidence upon which you have based your decision is robust;
- d. Make sure that the regard you have given to the views of the person/carer (and others) and the impact on their Wellbeing is clear; and
- e. Make proportionate records of any conversations you have had to try and resolve the differences.

You must also make the person (or their representative)/carer aware of their right to complain about the decision that has been made.

6. Next Steps (Eligible Needs for Care and Support)

Under the Care Act there are 3 steps that you must carry out following a determination of eligible need and notification of outcome. These steps should be carried out prior to any formal Care and Support planning process commencing.

Under each step you should ensure appropriate and proportionate recording to evidence:

- a. What has been explored or discussed;
- b. What has been agreed;
- c. The rationale/evidence for any agreement or decision (including the regard that has been given to the thoughts, wishes and feelings of the person); and
- d. Further action required (including any mechanism to monitor or review decisions made).

6.1 Where the person lacks capacity

If the person with Care and Support needs lacks capacity to engage in the 3 following steps you should discuss options with their representative and decisions should be made in their best interests.

See the [Mental Capacity Act 2005 Resource and Practice Toolkit](#), with guidance about assessing capacity and making best interest decisions.

6.2 Step 1: To consider with the person what can be done to meet the eligible needs they have

The primary purpose of step 1 is to establish the range of ways that the person could meet their eligible needs, beginning with ways that needs could be met from within their own available resources (for example independently, by a carer or within the local community). This is called a strengths based approach and, wherever possible, every conversation with a person about meeting needs should be from a strengths perspective. This means that *before* you talk about service solutions to the presenting issue you must support the person to explore whether there is:

- a. Anything within their own power that they can do to help themselves; or
- b. Anything within the power of their family, friends or community that they can use to help themselves.

Where there appears to be limited or inappropriate options to meet one or more eligible need from within the person's own networks you will need to provide information about the nature of available services that the Local Authority could provide to meet needs.

6.3 Step 2: Establish whether the person wants the Local Authority to meet their eligible needs

Step 1 will have identified a range of possible options to meet the eligible needs that the person has.

The person will need to decide (or, if they lack capacity a decision will need to be made in their best interests):

- a. Whether they want the Local Authority to arrange services to meet their needs;
- b. Whether they want to arrange their own services (either formal or informal); or
- c. Whether they want to access alternative provision (for example health, housing or a community based provision).

Whether or not the person wants the Local Authority to meet their eligible needs will depend on a range of factors, and could include:

- a. The complexity of their need, including any fluctuation in need and the need for multiple Care and Support services;
- b. The person's ability to make and sustain alternative arrangements;
- c. The availability and sustainability of informal support options (e.g. carers and other informal networks);
- d. The availability of alternative support and services in the area (for example, a health service that could meet the need may be available but have a long waiting list);
- e. The level of risk in their current situation, including the risk of abuse and neglect;
- f. The financial implications of services for the person; and
- g. The level of on-going support from adult Care and Support likely to review and monitor the person's needs or situation.

Alternative solutions to Local Authority services

If the person decides to arrange their own formal or informal care and support (for example if they self-fund or will be using informal care only) they may still benefit from the Care and Support Planning process, and you must explain this to them.

If the person decides to access alternative services to meet their needs (for example a health service) you must make sure that this is in place, which

may involve you supporting them to access it.

6.4 Step 3: If the person wants the Local Authority to meet their needs, establish whether they are Ordinarily Resident in the Local Authority area.

This is the stage when ordinary residence should be established under the Care Act. Following a determination of eligibility the Local Authority can only meet the eligible needs of a person if they are:

- a. Ordinarily resident in their area; or
- b. Present in the area and of no settled residence.

See what the Care Act says about [Ordinary Residence](#), including understanding what ordinary residence is, how/when to establish ordinary residence and how/when to meet the needs of those who are not ordinarily resident in the area.

tri.x has developed a tool to support decision making around ordinary residence.

See: [Ordinary Residence Decision Support Tool](#).

Also see the [Ordinary Residence Procedure](#).

If you are at all unclear about the ordinary residence of the person after accessing the available information in these procedures you should speak to your line manager.

7. Next Steps (Eligible Needs for Support)

Under the Care Act there are 2 steps that you must carry out following a determination of eligible need and notification of outcome. These steps should be carried out prior to any formal Support planning process commencing.

Under each step you should ensure appropriate and proportionate recording to evidence:

- a. What has been explored or discussed;
- b. What has been agreed;
- c. The rationale/evidence for any agreement or decision (including the regard that has been given to the thoughts, wishes and feelings of the carer); and
- d. Further action required (including any mechanism to monitor or review decisions made).

7.1 Step 1: To consider with the carer what can be done to meet the eligible needs they have

The primary purpose of step 1 is to establish the range of ways that the carer could meet their eligible needs, beginning with ways that needs could be met from within their own available resources (for example independently, with informal support or within the local community). This is called a strengths based approach and, wherever possible, every conversation with a carer about meeting needs should be from a strengths perspective. This means that *before* you talk about service solutions to the presenting issue you must support the carer to explore whether there is:

- a. Anything within their own power that they can do to help themselves; or
- b. Anything within the power of their family, friends or community that they can use to help themselves.

Where there appears to be limited or inappropriate options to meet one or more eligible need from within the carer's own networks you will need to provide information about the nature of available services that the Local Authority could provide to meet needs.

7.2 Step 2: Establish whether the person needing care is ordinarily resident in the Local Authority area

This is the stage when ordinary residence should be established under the Care Act. Following a determination of eligibility the Local Authority can only meet the eligible needs of a carer if:

- a. The person they provide care to is ordinarily resident in their area; or
- b. The person they provide care to is present in the area and of no settled residence.

Need to Know

It does not matter if the carer lives in the area. For the purposes of the Care Act the carer is ordinarily resident in whichever area the person they care for lives.

See what the Care Act says about [Ordinary Residence](#), including understanding what ordinary residence is, how/when to establish ordinary residence and how/when to meet the needs of those who are not ordinarily resident in the area.

tri.x has developed a tool to support decision making around ordinary residence.

See: [Ordinary Residence Decision Support Tool](#).

If you are at all unclear about the ordinary residence of the carer after accessing the available information in these procedures you should speak to your line manager.

Also see the [Ordinary Residence Procedure](#)

8. When to Proceed to Care and Support/Support Planning

8.1 When the Local Authority will be meeting some/all needs

If the person/carers confirms that they wish for the Local Authority to meet some, or all of their eligible needs you **must** carry out Care and Support/Support Planning. The Local Authority cannot meet needs until a Care and Support/Support Plan is in place and a personal budget agreed (unless needs are urgent).

8.2 When the person/carers is self funding or intends to meet needs through alternative support

If any of the following circumstances apply then Care and Support/Support Planning must take place in the same way as it would if the Local

Authority were arranging services:

- a. The person/carer requests it;
- b. You feel it would be beneficial due to the complexity of their need and the person/carer consents; or
- c. In the case of a person with Care and Support needs, the person lacks capacity and their representative requests it; or
- d. The person lacks capacity and does not have an appropriate person able to explore and make a decision about the best way to meet needs; or
- e. The person lacks capacity and the Local Authority decides it would be in their best interests to carry out Care and Support Planning;
- f. The person is at risk of abuse or neglect.

Even if a person/carer does not request Care and Support/Support Planning you must explain their right to do so and, if they subsequently request it, carry out Care and Support/Support Planning.

The Care and Support/Support Planning process can be a helpful way to support people to:

- a. Explore all of the available options with professional support;
- b. Decide the best way to meet needs from the available options;
- c. Make the best use of their financial resources for the longest time; and
- d. Decide the best method of arranging services.

If the person decides not to proceed with Care and Support/Support Planning you must:

- a. Provide them with the information and advice they request (or you feel would be beneficial) about available appropriate services to meet their needs;
- b. Provide them with information and advice about ways they can prevent, reduce or delay needs;
- c. Provide them with any other information that they request or that you feel will be beneficial;
- d. Consider the support the person/carer may need to explore and arrange their own services and whether the advocacy duty applies;
- e. Explain to them what to do if they change their mind about planning or arranging their own services;

- f. Explain to them what they should do if their needs change;
- g. Explain to them what they should do if their financial circumstances change;
- h. In the case of a person with Care and Support needs, still carry out any planned Care and Support processes with any carer.

All of the above information should be confirmed in writing.

Where you feel there is a risk that the person/carer will not make appropriate arrangements to meet their eligible needs you should make proportionate arrangements with them to monitor the situation, as the duty for the Local Authority to meet eligible needs is not discharged until alternative support/services are in place.

When services are in place (or you are satisfied that the person/carer or their representative will make appropriate arrangements) and there is no need to monitor the situation you should consider closing their case.

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